

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TAIWAN

Complete Community Opposition How-To

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INTRODUCTION & FRAMEWORK

Why This Matters

Across Taiwan, communities discover that a place they depend on — an estuary wetland, a stretch of coast, an algal reef, an Indigenous mountain, a farming township — has been opened to something destructive. A naphtha cracker or petrochemical complex. A science park drawing vast amounts of water and power. An LNG terminal on a living reef. A cement mine on Indigenous land. A waste incinerator or a landfill. A coal-fired unit. The first sign is often the survey crews, a rezoning, a notice that a project has entered environmental review, or the sudden news that a committee will decide the fate of your coastline in a matter of weeks.

This guide is a practical manual for those communities. It explains how the approval system for large projects works in Taiwan, where the genuine — and, by regional standards, unusually strong — openings are, what documentation matters, how to organize, and how to use the levers that have here delivered some of Asia's most striking environmental victories. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

Taiwan is, for a community facing a destructive project, one of the most hopeful settings in this guide — and an honest one, because its tools are powerful but not infallible. The hopeful truth is real and proven. **Taiwan's communities have cancelled major industrial and energy projects.** The Kuokuang petrochemical complex — an 8th naphtha cracker planned for a white-dolphin habitat at the Zhuoshui River estuary — was defeated in 2011 by a movement that drew in poets, film directors, scholars, students, farmers, and a citizen land-buying campaign, and the developer withdrew. The Lungmen nuclear plant — the controversial Fourth Nuclear Power Plant — was halted in 2014 after mass protests and a hunger strike, and was sealed rather than fuelled. These are not moral victories; they are projects that were stopped.

The honest counterweight matters too. **Not every fight is won, even here.** The Datan algal-reef LNG terminal drew a fierce campaign, a lawsuit over its flawed environmental review, and a national referendum — yet the referendum fell short, and the project was redesigned and built. Taiwan shows both what a sophisticated, determined movement can win and where a determined state-backed project can still proceed.

But Taiwan shares a decisive feature that most of the world's communities lack: **it is a full democracy with the rule of law, a free press, an independent judiciary, and a distinctive, powerful environmental-review system.** Protest is lawful and safe; courts have overturned unlawful approvals; and, uniquely, Taiwan's environmental-impact review runs through a committee that can — and has — rejected projects outright. That combination is the most important fact in this guide.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A project needs its environmental-impact assessment approved by a committee that includes independent experts; it needs to survive the administrative courts, which have revoked such approvals; it needs the acquiescence of a public that in Taiwan has repeatedly refused to give it; it may face a citizen referendum; and it needs to avoid the scrutiny of the Control Yuan, the legislature, and a vigorous press. Each is a potential point of leverage.

Your task is to find the link you can reach. Sometimes it is the environmental-impact assessment and the review committee — Taiwan's central arena. Sometimes it is the administrative court, which has quashed EIA conclusions for procedural and substantive flaws. Sometimes it is a referendum. Sometimes it is Indigenous land rights. And often — as Taiwan's history shows more vividly than almost anywhere in this guide — it is the sustained, creative, disciplined weight of a mobilized public.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying.

Where a project depends on an environmental-impact assessment you can contest before the review committee and the courts, and a broad public can be mobilized, Taiwan's tools are strong and have won — Kuokuang and Lungmen are the proof.

Where the state treats a project as strategic — for energy security or the semiconductor economy — and redesigns it to clear review, the fight is harder — the Datan algal reef is the warning. There the levers still matter, but so do endurance, breadth, the courts, and a clear-eyed view of the odds.

Knowing which situation you are in is among the most important judgments you will make, and much of this guide is designed to help you judge accurately.

How to use this guide

Read the whole thing once before acting, and read the legal and organizing sections with care, because in Taiwan the EIA committee, the administrative courts, and mass mobilization are what win. Two principles run throughout. First, **use the review committee and the courts**: the environmental-impact assessment is the spine of most projects, and the committee that reviews it — and the court that can overturn its conclusion — is your central arena. Second, **combine the strands**: documentation, legal action, organizing, media, referendums, and Indigenous rights work far better together than any one alone. That combination is how Kuokuang was won — and building it is the work of this guide.

HOW THE SYSTEM WORKS

You cannot pressure a chain you cannot see. This section maps the bodies that decide, the journey a project takes, the rules that matter, the incentives that drive decisions, and the overseers who can hold the system to account.

The Bodies That Decide

The Ministry of Environment and its EIA Review Committee. Environmental review in Taiwan runs through the Ministry of Environment (upgraded from the Environmental Protection Administration in 2023) and, above all, its **Environmental Impact Assessment Review Committee** — a body that includes independent academics and experts alongside officials. This committee is the single most important feature of Taiwan's system and the central arena of this guide: **it can approve a project, impose conditions, send it to a fuller second-stage review, or reject it outright.** Because it includes independent members, it is not a rubber stamp — though, as the algal-reef case shows, it can be pressured. For many projects, the committee is where the fight is won or lost.

The administrative courts. Taiwan's High Administrative Courts and Supreme Administrative Court hear challenges to environmental approvals and permits, and they have **revoked EIA conclusions** as unlawful — the Central Taiwan Science Park litigation is the landmark. Standing for affected residents and groups has broadened over time. The courts are an independent check the developer cannot capture.

The competent authorities and local governments. The relevant ministry (economics, energy) or a state enterprise

(Taipower, CPC) usually sponsors a large project; county and city governments handle zoning, local permits, and often stand to gain or lose. Local governments can themselves resist or support a project, and a rezoning is frequently a project's first enabling step.

The Legislative Yuan. Legislators hold hearings, question ministers, control budgets, and can amend the law — a political arena that has shaped major fights, including the nuclear question.

The Control Yuan. A distinctive branch of Taiwan's government, the Control Yuan (監察院) investigates maladministration, can **censure or impeach officials**, and audits public bodies; the National Human Rights Commission sits within it. It is an oversight body a captured agency cannot easily deflect.

The people, through referendums. Under the Referendum Act, citizens can initiate national or local referendums, as they did over the algal reef and nuclear power — a direct-democracy lever unusual in this guide.

The Council of Indigenous Peoples and Indigenous communities. Where a project touches Indigenous land, the Indigenous Peoples Basic Law and traditional-territory rules create consultation and consent obligations — contested in practice, but real leverage.

How a Decision Is Actually Made — The Journey of a Project

Stage 1 — Siting and planning. A project appears in an industrial plan, an energy plan, a science-park expansion, or a concession, often enabled by a rezoning. This is where a project first becomes possible.

Stage 2 — Environmental-impact assessment. Significant projects require an EIA. A first-stage review may clear a project with conditions, or — for serious impacts — send it to a fuller **second-stage** review with more public participation and scrutiny. The **review committee** decides, and can reject. This is the decisive formal stage.

Stage 3 — Permits and construction. Land, water, construction and operating permits follow, then building. Each is a document with conditions and a potential point of challenge.

Stage 4 — Operation and harm. Pollution, habitat loss, water and air impacts, and their effects on people and livelihoods follow — the toll that documentation must capture.

The Rulebook — The Provisions That Matter

You need not be a lawyer, but you must know the handful of instruments that give your case its force:

- **The Environmental Impact Assessment Act**, the spine of the system — the review committee, the two-stage process, the public-participation rights, and the grounds on which a court can quash an approval.
- **The Freedom of Government Information Law**, which compels disclosure of studies, approvals, and data.
- **The Referendum Act**, which allows citizen-initiated national and local votes.
- **The Indigenous Peoples Basic Law**, on consultation and consent for projects on Indigenous land.
- **Pollution-control, water, forest, and wildlife-conservation laws**, and the constitutional and environmental-basic-law commitments to environmental protection.

The pattern to hold in mind: the review committee is powerful and includes independent voices; the courts are genuinely independent; and the public has direct levers. **These are checks a developer cannot simply override** — the firmest ground in this guide.

Follow the Money — Why Projects Proceed

Understand the incentives and you understand the pressure. The state wants energy security and the growth of a semiconductor economy that is thirsty for power, water, and land; state enterprises want their projects built; developers want returns; local governments want revenue and jobs. The environmental and social cost falls on communities and on Taiwan's crowded, fragile natural heritage. That is why the independent review committee, the courts, and the public levers matter so much — they are checks the beneficiaries cannot fully capture.

The Overseers — Who Can Hold the System to Account

- **The EIA Review Committee**, which can reject or condition a project.
- **The administrative courts**, which have revoked unlawful approvals.
- **The Control Yuan**, for maladministration and official misconduct.
- **The Legislative Yuan**, for political and budgetary pressure.

- **The people**, through referendums.
- **A vigorous free press and a deep civil society** — Wild at Heart Legal Defense Association, the Environmental Jurists Association, the Taiwan Environmental Protection Union, Citizen of the Earth, the Green Citizens' Action Alliance, and many local groups.

These are the overseers your strategy must reach. Much of the rest of this guide is about building a case strong enough to move them — above all the review committee, the courts, and the public.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Taiwanese and comparable campaigns tend to go, not a controlled study. The decisive variable is not fully in the table: **how strategic the state considers the project, and whether it will redesign it to clear review**. For an ordinary project you can contest before the review committee and the courts, Taiwan's tools are strong and have won; against a project the state treats as essential to energy or the semiconductor economy, discount the figures, lean hardest on the courts and mass mobilization, and be clear-eyed — the algal reef shows that even a fierce campaign with a referendum can lose.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the EIA	25-45%	during review	low	On record; conditions or second-stage review
Opposition at the EIA review committee	30-50%	6-36 months	low-moderate	Rejected, conditioned, or sent to second stage
Administrative court challenge	30-50%	12-48 months	moderate	EIA conclusion revoked; process redone; delay
Citizen referendum	20-40%	6-24 months	moderate	Project vetoed or forced to change
Control Yuan / oversight referral	15-35%	6-36 months	low	Officials censured; a project's protection removed
Indigenous land-rights challenge	20-40%	12-48 months	low-moderate	Consent obligations enforced; project blocked or moved
Mass, creative public mobilization	30-55%	6-36 months	low	Political retreat; a project withdrawn
All steps combined (contestable project)	45-65%	12-48 months	low-moderate	Stopped, redesigned, or delayed
All steps combined (strategic, state-backed)	20-40%	12-48 months	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: all steps together beat any single one, and Taiwan's real strengths are unusual — a **review committee with independent members that can reject a project**; **independent courts** that have revoked EIA approvals; a **citizen referendum** lever; a distinctive **Control Yuan** oversight branch; **Indigenous land rights**; a **free press**; and one of Asia's **most sophisticated, creative environmental movements**. Its constraints are a **state that pushes strategic energy and industrial projects**, developers who **redesign to clear review**, a review committee that can be **politically pressured**, and **hard referendum thresholds**.

A note on cost: participating, documenting, and organizing are inexpensive. The expenditure that changes outcomes is an environmental lawyer — available through Taiwan's environmental legal groups (Wild at Heart Legal Defense Association, the Environmental Jurists Association) — engaged early, because the committee and court routes both reward preparation.

Effectiveness Visualization

SUCCESS PROBABILITY (stopped, redesigned, or delayed)

CONTESTABLE PROJECT -- committee reachable, courts open, public mobilizable:

All steps combined:	45-65%
Mass mobilization:	30-55%
EIA committee / court:	30-50%
Referendum:	20-40%
Single step:	5-45%

STRATEGIC, STATE-BACKED PROJECT -- energy/semiconductor priority, redesigned:

All steps combined:	20-40%
Courts + mobilization:	the strongest combination
Delay / redesign:	more achievable than an outright stop
Single step:	5-30%

How to read this honestly. The moves that change outcomes in Taiwan are **the EIA committee, the courts, and mass mobilization, reinforced by referendums and Indigenous rights**. Kuokuang shows the ceiling: a broad, creative movement — artists, scholars, farmers, a citizen land-buying campaign — defeated a petrochemical giant. Lungmen shows the same for nuclear power, stopped after protests and a hunger strike. The algal reef shows the floor: where the state redesigns a strategic project and the referendum threshold is hard to clear, even a fierce campaign can lose. Most Taiwanese fights sit between them, and the honest lesson is that the levers are strong and have won — but they are not certain.

Step Importance Ranking (When All Combined)

1. **The EIA review committee** — public participation, a push for second-stage review, and the case for rejection before the body that can actually say no.
2. **The administrative courts** — the challenge that can revoke an unlawful EIA conclusion, independent of political will.
3. **Mass, creative public mobilization** — the broad, sustained, imaginative pressure that has been Taiwan's signature and has forced political retreats.
4. **Documentation** — the record that every committee, court, and referee acts on.
5. **Referendums, the Control Yuan, Indigenous rights, and media** — the levers that raise the cost, reach past capture, and carry the fight to the public.

What Taiwanese Campaigns Actually Show

A few patterns recur. **Broad, creative movements win** — Kuokuang was defeated by an unusually wide coalition and a citizen land-buying campaign, and Lungmen by sustained protest and a hunger strike. **The committee and the courts have teeth** — the review committee can reject, and the courts have revoked EIA conclusions (Central Taiwan Science Park). **But strategic projects can proceed** — the Datan algal-reef LNG terminal was redesigned and built after its referendum fell short. **Referendums are powerful but hard** — the thresholds are demanding, and a loss can be spun as a mandate. **And Indigenous land is real leverage** — consent obligations, though contested, have blocked and moved projects. The through-line: **contest the EIA before the committee, sue in the administrative courts, organize broadly and creatively, and use the referendum and Indigenous levers where they fit — because in Taiwan that combination has stopped what the powerful wanted built.**

STEP 1: TARGET IDENTIFICATION

Before you gather a neighbor or write a word, you must know exactly what you are facing, who decides, where the chain is weakest, and how determined the other side is. Acting before you know these things wastes effort. Spend your first days answering five questions.

The Five Questions

1. What exactly is the project, and where is it in the EIA process? A petrochemical complex, a science-park expansion, an LNG terminal, a power plant, a mine, an incinerator — and is the environmental-impact assessment not yet filed, in first-stage review, sent to second-stage, or approved? The EIA and its review committee are the spine of most projects; knowing exactly where it stands tells you whether you are participating, pushing for second-stage review, contesting a decision, or suing to revoke one.

2. What does it threaten — and does it touch Indigenous land, a reef, a wetland, or a water source? The nature of the harm shapes the strongest argument. A reef, an estuary, a dolphin habitat, a farming water source, or a forest each engages powerful grounds. And if the site is on Indigenous traditional territory, the consultation and consent obligations of the Indigenous Peoples Basic Law come into play.

3. How strategic does the state consider it? Be honest. Is this an ordinary developer's project, or one the state treats as essential — for energy security or for the semiconductor economy's hunger for power and water? The algal-reef lesson is that a strategic project will be redesigned to clear review and defended hard — so gauge the force you are up against, and plan for a long fight if it is strategic.

4. Who decides, and who benefits? Which ministry or state enterprise sponsors it? Who sits on the review committee? Which rezoning enabled it? Who profits? Map the decision-makers and beneficiaries; it tells you which lever, and whether the Control Yuan and the courts belong in your plan.

5. What are the timelines and the openings? When does the review committee meet? Is a second-stage review possible? Is the EIA conclusion recent enough to challenge in court? Could a referendum fit the calendar? Identify the committee dates and the court deadlines immediately — the committee meeting is often the decisive moment, and it can come fast.

Reading the Answers

Work the five questions together and a picture forms. **An ordinary project threatening a reef, wetland, or water source, with the EIA in review** points toward participation, a push for second-stage review, and the case for rejection before the committee — plus a court challenge if it is approved unlawfully. **A strategic, state-backed project** points toward the same legal levers but demands broad mobilization, the courts, endurance, and realistic expectations. **A project on Indigenous land** adds the consent and traditional-territory levers. **In every case**, the committee, the courts, and a mobilized public are available, and Taiwan's history shows how far a broad, creative movement can go.

Naming Your Realistic Goal

Before going further, decide with a small, trusted group what winning would mean — concretely and honestly. Depending on your situation, a realistic goal might be: rejection or second-stage referral at the review committee; an EIA conclusion revoked by the administrative court; a referendum won; consent obligations enforced on Indigenous land; a project withdrawn under public pressure, as Kuokuang was; or, against a strategic project, delay, redesign, and a durable movement even where an outright stop proves out of reach. Kuokuang and Lungmen show that stopping is genuinely possible; the algal reef shows it is not guaranteed. A goal that fits your situation, anchored in the EIA process and the courts and carried by a broad public, is the responsible one.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. In Taiwan — where the review committee, the courts, the Control Yuan, and the public all act on evidence — the campaign is won or lost on whether you can show, in dated, sourced, organized form, exactly what is happening, what rule or standard it breaks, and what harm it does. A community that can prove a defective environmental study, an unassessed impact on a reef or water source, or a flawed committee process holds the instrument that moves the strongest overseers. A community with only anger has far less.

The Mindset: Build a Record for a Committee and a Court

Approach documentation as if you are assembling a file that an EIA review committee member — an independent academic among them — and an administrative-court judge will read: people who act on concrete, provable facts tied to specific requirements. Everything must be dated, attributed to a source, and stored securely in more than one place, including with trusted allies. Frame it around the rules from Section 2: the EIA Act's requirements, the pollution and water standards, the wildlife and Indigenous protections. Evidence that shows the environmental study failed to assess a real impact is the most powerful evidence you can gather, because it is the ground on which committees reject and courts revoke.

What to Document

The project and its EIA. What is proposed, by whom, and exactly where it stands — the environmental-impact statement, the review-committee record, the conditions, the permits. Obtain the documents; the gaps and defects in the environmental study are often your case, and the committee dates drive the timeline.

The environmental impact. The habitats and species affected — a reef, a dolphin habitat, a wetland, a forest — the water sources and quantities drawn, the air and pollution loads, and whether the study assessed them honestly. For a reef or a water source, document the ecological and community value the project would sacrifice.

The harm. Pollution, habitat and reef loss, water depletion, effects on fishing, farming, and health, and cumulative effects — captured with dates, locations, and imagery.

The process. Whether the EIA review was genuine — whether committee members attended and voted properly, whether the public was heard, whether a second-stage review was wrongly avoided. Process defects are among the most reliable grounds in court; the algal-reef review, cleared amid academic absences, is a case in point.

The decision chain and any misconduct. The rezoning, the sponsoring ministry or enterprise, the beneficiaries, and — documented only from solid sources — any sign of corruption or official misconduct.

How to Document Safely and Credibly

Record dates and sources for everything; prefer official documents, imagery, and verifiable data over rumor; and be accurate and restrained, because a file that overstates can be dismissed. Use satellite and remote imagery — freely available tools document reef damage, construction, and land change without confrontation. **On safety: Taiwan is a full democracy with the rule of law and a free press — organizing, documenting, and protesting are lawful and safe, and you can work openly.** That freedom is an asset: use it to build a public, transparent, well-evidenced record. Partner early with Taiwan's environmental legal groups and NGOs — Wild at Heart Legal Defense Association, the Environmental Jurists Association, Citizen of the Earth, the Taiwan Environmental Protection Union — who bring the legal framing, the scientific capacity, and the experience before the committee and the courts.

Reading a Taiwanese Environmental Review for Its Weak Points

When you obtain the environmental-impact statement, read it like an opponent looking for the seams, because that is where your case lives — the ground on which the committee rejects and the courts revoke. A handful of weaknesses recur. **The core impact** is the first to test: does the study honestly assess the effect on the reef, the wetland, the dolphin habitat, or the water source, or does it wave it away? A study that fails to assess a real and serious impact is the strongest ground for rejection or a second-stage review. **The water analysis** is the second, and it is Taiwan's signature vulnerability: does the project's demand for water — a science park or an industrial complex can draw enormous quantities — get honestly weighed against the needs of farmers and communities and the limits of the source? **The alternatives and cumulative effects** are the third: has the study considered a different site, a smaller project, or doing nothing, and has it added this project to the others already burdening the same coast, airshed, or river basin? **The process** is the fourth: was the review conducted properly — did the committee members attend and vote as the law requires, or was a decision pushed through amid absences, as at the algal reef? A procedural irregularity is both a public scandal and a ground in court. Each weakness is at once a submission to the committee, an argument for a second-stage review, and, if the project is approved, a ground to take to the administrative court.

WHAT TO GATHER, AND WHERE TO FIND IT

This section turns documentation into a concrete list of sources. Much of Taiwan's environmental record is public, and a free-information law, an open press, and a strong civil society make it reachable. Work through these carefully.

The Official and Legal Record

The EIA file. The environmental-impact statement, the review-committee meeting records and votes, the conditions, and the conclusion are part of the public environmental-review record; request the full file. Note the committee dates and, once a conclusion issues, the deadline to challenge it in court. The defects in the environmental study are frequently the case.

The permits and plans. The rezoning, the land and water permits, the construction and operating approvals — each with conditions you can hold the project to, and each a potential point of challenge.

Freedom-of-information requests. Under the Freedom of Government Information Law, you can compel disclosure of studies, approvals, monitoring data, water-allocation decisions, and correspondence — and a refusal is itself challengeable.

The Environmental and Water Sources

Ecological and water data. Conservation designations, species records (a reef, a wetland, a protected species), river and groundwater data, and water-allocation figures establish what is at stake — central to the case, especially for water-

hungry projects.

Satellite and monitoring data. Global Forest Watch, reef and coastal imagery, and satellite time-series document damage and construction safely and verifiably.

The Company and Misconduct Record

Company and ownership records. Taiwan's company registry shows who owns and directs a developer; cross-border tools (OpenCorporates) trace parents and links. Public-procurement and state-enterprise records reveal contracts and sponsors.

The oversight and misconduct record. Control Yuan investigations and censures, court judgments, and investigative journalism document any maladministration or corruption.

The Organizations and Channels That Carry the Case

- **Environmental legal groups** — Wild at Heart Legal Defense Association, the Environmental Jurists Association — who litigate EIA cases and know the committee and the courts.
- **Environmental NGOs** — the Taiwan Environmental Protection Union, Citizen of the Earth, the Green Citizens' Action Alliance, the Society of Wilderness — who investigate, organize, and mobilize.
- **Indigenous organizations and legal advocates**, where the project touches traditional territory.
- **The Control Yuan and the Legislative Yuan**, reachable through referrals and sympathetic legislators.
- **A vigorous free press and investigative journalists**, who have made these fights national stories.

Turning Sources into a Case

As you gather, sort everything against the chain from Section 2 — the rezoning, the EIA, the committee decision, the permits, the operation, the harm — so each piece attaches to the point and the requirement it proves, and note every committee date and court deadline. By the end you should be able to show, with dated and sourced evidence, what is happening, what rule or standard it breaks, and at what cost — the record that moves the review committee, the courts, the Control Yuan, and the public, and that, at Kuokuang, moved a nation.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labor side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; Taiwan has its own company registry and a freedom-of-information law that serve the same purpose.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarizing a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

The Water and Power Question — Taiwan's Distinctive Pressure Point

If your fight is against a science park, an industrial complex, or a power project, you are almost certainly, at bottom, fighting over water and electricity — and this is where Taiwan's strongest projects are also most exposed. The island's semiconductor economy is extraordinarily thirsty and power-hungry: fabrication plants and their science parks draw vast quantities of water and electricity, and the state treats securing both as a strategic priority. That priority is what makes such projects hard to stop — but it is also their vulnerability, because the water and power have to come from somewhere, and that somewhere is usually a river, a reservoir, or a coastline that farmers, fishers, and communities already depend on.

So build the water-and-power case deliberately. **Document the demand honestly** — how much water and electricity the project will draw, and over what timescale — using the environmental study, the permits, and freedom-of-information

requests. **Document the source and the competition for it** — the river or reservoir the water comes from, the droughts the island already suffers, and the farmers whose irrigation is cut in dry years to supply industry, a recurring and bitterly resented pattern in Taiwan. **Document the power source** — whether it means a new coal or gas plant, an LNG terminal on a reef, or pressure to keep or extend nuclear power, each of which opens its own front. Framed this way, an abstract industrial project becomes a concrete question the public understands: *whose water, and at what cost?* That is a question farmers, fishers, and ordinary citizens answer viscerally, and it has repeatedly turned local water and energy fights into national ones.

The strategic point is that the state's strongest justification — the strategic need for the project — rests on a resource base that is finite, contested, and already stretched. Make the trade-off visible and personal, tie it to the environmental review and the courts, and you turn the project's greatest strength into the ground on which a broad public can be mobilized against it.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organization gives it weight. Taiwan has one of Asia's most sophisticated and creative environmental movements, and its history offers a clear lesson: **breadth and imagination win**. The Kuokuang victory came from a coalition far wider than the affected villages — and building that kind of coalition is the work of this section.

Start With a Small, Trusted Core

Begin with a handful of committed people who share the load and can act without drama. Agree early on what you are trying to achieve, who does what, and — given the committee dates and court deadlines — who is responsible for the legal timeline. In Taiwan you can organize openly and safely, so build a transparent, public core that others will want to join.

Widen Into a Broad, Creative Coalition

Taiwan's strongest movements turned local fights into national causes by drawing in people far beyond the affected community. Aim for the same shape. **Local residents, farmers, and fishers** are the moral core. **Environmental legal groups and NGOs** — Wild at Heart, the Environmental Jurists Association, Citizen of the Earth, the Taiwan Environmental Protection Union — bring the litigation and the committee expertise. **Scientists and academics**, including those who sit on or advise the review committee, supply the evidence and credibility. **Students** have repeatedly been an engine of Taiwanese movements. And — the Kuokuang signature — **artists, writers, poets, and cultural figures** gave the fight moral weight and national attention. Breadth and cultural reach are what turned a wetland into a cause the president could not ignore.

The Distinctive Taiwanese Lever — Creative Mass Mobilization

Taiwan's movements are inventive: the Kuokuang campaign ran a **citizen land-buying trust**, inviting the public to buy symbolic shares of the threatened wetland to complicate the developer's land assembly and dramatize the stakes; the anti-nuclear movement sustained years of protest and a hunger strike; campaigns use festivals, art, science, and referendums. Sustained, creative, disciplined public pressure has repeatedly forced political retreats. So mobilize broadly and imaginatively — but pair the public pressure always with the legal levers, the committee, and the courts, which do the durable work when the crowds are quiet.

Choose Tactics That Fit — and Sustain the Effort

Taiwan's repertoire is wide and lawful: public participation in the EIA, pushing for second-stage review, petitions, demonstrations, coalition-building, litigation, referendums, cultural action, and the Control Yuan and legislative routes, used together. Keep it lawful and disciplined — Taiwan's free, safe civic space is an asset you protect by using it responsibly. Guard against the burnout and division that a long fight breeds, by sharing the load, bringing in new people continually, celebrating milestones, and keeping the legal case moving even when the streets are quiet. And plan for endurance: some Taiwanese fights ran for years before they were won, and some — like the algal reef — were lost even after a fierce campaign. Build broad enough, creative enough, and durable enough to last, because in Taiwan that is what has repeatedly prevailed.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible

turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organizing firms** that run turnout and canvassing, and, if the fight becomes a referendum, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm**, a **campaign consultant**, a **digital-advocacy shop**, or a seasoned **community organizer** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — Taiwan's free and safe civic space makes this market usable and a visible campaign an asset, so use it openly, but keep the effort honestly rooted in the real community.

Fighting on Indigenous Land

Where a project sits on Indigenous traditional territory, a distinct and powerful set of levers comes into play, and they should shape the campaign from the start. Taiwan's **Indigenous Peoples Basic Law** and its traditional-territory rules create obligations to consult Indigenous communities and, for certain projects, to obtain their consent — obligations that are real, if contested and imperfectly enforced. Long-running fights, such as the resistance to cement mining on Truku land in Hualien, have turned on these rights and on the demand that Indigenous communities be genuine decision-makers over their own land, not merely consulted after the fact. If your fight is on Indigenous territory, center the affected Indigenous community and its own leadership and organizations, rather than speaking for them; document whether the consultation and consent obligations were met; and raise any failure both in the environmental review and, where appropriate, in court and before the Control Yuan. Indigenous land rights are not a side issue in these cases — they can be the strongest ground of all, and they carry a moral weight that reaches the public and the press. Handle them with respect, follow the community's lead, and treat their enforcement as a central pillar of the campaign.

STEP 4: LEGAL CHALLENGES

Legal action in Taiwan is a genuine and powerful lever, and its two most important arenas are distinctive: the **EIA review committee**, which can reject a project, and the **administrative courts**, which have revoked EIA approvals. This section explains the openings. It is not a substitute for a lawyer, and finding one experienced in environmental and administrative law — through Taiwan's environmental legal groups — is an early and vital task.

The Central Arena — The EIA Review Committee

Most large projects live or die on their environmental-impact assessment, and the review committee is where that is decided. Your legal-strategic work here is to:

- **Participate fully in the review**, submitting evidence and expert analysis that the environmental study is inadequate — that it failed to assess a real impact on a reef, a water source, a habitat, or a community.
- **Push for a second-stage review**. Where the impacts are serious, the case for a fuller second-stage assessment — with more public participation and scrutiny — is itself a major goal, because it slows the project and opens it to defeat.
- **Make the case for rejection**. Because the committee includes independent members and can say no, a well-evidenced case aimed at the committee is not a formality — it is the fight.

Because the committee can be pressured — as the algal-reef review showed, cleared amid academic absences and a skewed vote — watch the process closely and document any irregularity, because that becomes your ground in court.

The Administrative Courts — The Independent Check

Challenging the EIA conclusion. Where the committee approves a project unlawfully — on a defective study, a flawed process, or an avoided second-stage review — affected residents and groups can petition the administrative court to **revoke the EIA conclusion**. Taiwan's courts have done exactly this; the Central Taiwan Science Park litigation is the landmark, and standing for affected communities and environmental groups has broadened. This is your strongest independent check.

Challenging permits and plans. The land, water, and construction permits, and the rezoning that enabled the project, can each be challenged where they were granted unlawfully.

Injunctive relief. Where harm is imminent, ask the court to suspend the approval or the works pending judgment.

The Direct-Democracy and Oversight Routes

The referendum. Under the Referendum Act, a citizen-initiated national or local referendum can veto or reshape a project, as the algal-reef campaign attempted. The thresholds are demanding — a signature drive and then a turnout-and-majority bar — so weigh it carefully, but it is a lever unique in this guide.

The Control Yuan. Refer maladministration or official misconduct to the Control Yuan, which can investigate, censure, and impeach — reaching officials a court challenge does not.

Indigenous rights. Where the project is on Indigenous traditional territory, the consultation and consent obligations of the Indigenous Peoples Basic Law are real, if contested, grounds to block or move it.

Standing, Deadlines, and Realistic Expectations

Three points. First, **standing**: affected residents and environmental groups have real and broadening standing before the committee and the courts, so let an experienced legal group carry the case. Second, **deadlines matter** — the committee dates and the window to challenge an EIA conclusion in court are firm, so track them from the start. Third, **be realistic**: the committee has rejected projects and the courts have revoked approvals (Kuokuang, Central Taiwan Science Park), but a strategic project may be redesigned to clear review and defended hard (the algal reef). A strong case, well-fought before the committee and the courts, is your best chance — but against a strategic, state-backed project, litigation may win delay, redesign, and a second-stage review rather than an outright stop.

What Legal Action Realistically Achieves

Be clear-eyed. Action before the committee can reject a project or force it into a fuller review; litigation can revoke an unlawful EIA conclusion and strike down permits; the referendum and Control Yuan routes reach the public and the officials; Indigenous rights can block or move a project. Combined with documentation, broad and creative organization, and media, legal action in Taiwan is the substantive path — and it is the path by which Kuokuang was stopped and Central Taiwan Science Park's approval was quashed. Treat the review committee and the administrative courts as your two central arenas, run them together, track the dates, and remember that this is a country whose communities and courts have stopped what the powerful wanted built — even as the algal reef is an honest reminder that not every fight is won.

The Kuokuang Precedent — How a Community Won

The single most important case for a Taiwanese community to know is the Kuokuang petrochemical fight, because it shows exactly how the levers in this guide combine to win. Kuokuang — an eighth naphtha cracker, a complex of some 2,700 hectares — was planned for the wetland at the Zhuoshui River estuary in central Taiwan, a habitat of the critically endangered Chinese white dolphin, whose population had fallen below a hundred. The government backed it as a pillar of the petrochemical economy. And it was defeated, not by one move, but by a coalition wider and more creative than the affected villages. Scholars produced the science on the dolphins and the wetland. Environmental legal groups pressed the environmental review. **Artists, poets, and film directors made the estuary a national symbol**, giving the fight a moral and cultural weight the government could not dismiss. Students mobilized. And in a signature move, the campaign launched a **citizen land-buying trust**, inviting ordinary people to buy symbolic shares of the threatened wetland — a "national trust" that complicated the developer's land assembly and dramatized the stakes. By April 2011, with the review committee unable to bless the project cleanly and the movement at full national volume, the president announced the government would not support it, and the developer withdrew. When you build your campaign, build it as the Kuokuang movement did: broad, creative, scientifically grounded, culturally resonant, and relentless. It is the proven Taiwanese route, and it defeated a petrochemical giant the government wanted built.

Second-Stage Review: Why It Matters So Much

One feature of Taiwan's system deserves its own strategy: the two-stage environmental-impact assessment. A first-stage review can clear a project, sometimes quickly and with conditions. But where the impacts are significant or uncertain, the project can be referred to a **full second-stage review** — a deeper assessment with far more public participation, more scrutiny, and more time. Winning that referral is often a major strategic goal in itself, for three reasons. It **slows the project**, buying the time a campaign needs to build. It **opens the project to defeat**, because the fuller scrutiny and participation give the committee and the public more grounds and more chances to say no. And it **creates a richer record**, strengthening any later court challenge. So do not treat the choice as binary between approval and outright rejection at the first stage. Build the evidence that the impacts are significant and unresolved — the reef, the water, the cumulative burden — and press hard for the second-stage referral. Many Taiwanese projects that were eventually stopped or reshaped were first sent to second-stage review, where the movement had the room to win.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a review-committee member, an administrative-court judge, a journalist, a legislator, and the public in different ways. Learning to translate your evidence for each is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a project's environmental study never properly assessed its effect on a reef and a water source it depends on. That one fact becomes:

- **A committee argument:** the environmental-impact assessment is inadequate and the project should be rejected or sent to second-stage review — the case made directly to the body that can say no.
- **A legal argument:** an EIA conclusion resting on a defective study is unlawful and can be revoked by the administrative court — as Taiwan's courts have done.
- **A process argument:** if the review was cleared irregularly — members absent, a skewed vote — that procedural flaw is itself a ground in court.
- **A political argument:** the state is approving harm to a reef and a water source its own laws protect, at legal and reputational risk.
- **A public and cultural argument:** a living reef and a community's water are being sacrificed to a project people never accepted — a story with deep resonance in Taiwan.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank.

Match the Argument to the Audience

The review committee wants the technical case that the study is inadequate and the impact real — the evidence, the science, and the specific requirement unmet.

The administrative court wants the approval framed as unlawful — a defective study, a flawed process, an avoided second-stage review — with the documents that prove it, filed within the deadline.

Journalists and the public want the human and natural story made vivid and true — the reef, the dolphins, the wetland, the farmers' water, the community's defiance — grounded in fact.

Legislators and the Control Yuan want the political and accountability angle — the risk, the misconduct, the cost of pushing an unlawful or unpopular project.

The Master Frame: "This Failed Its Own Environmental Review — and Taiwan Has Stopped Such Projects Before"

Across every audience, the strongest frame in Taiwan joins the technical to the proven: this project's environmental review was inadequate or unlawful; the committee can reject it and the courts have revoked such approvals; and Taiwan is the country whose communities stopped the Kuokuang petrochemical complex and the Lungmen nuclear plant. Framing the fight this way is accurate; it is powerful, engaging the committee and the courts at once; and it carries the authority of a movement that has won landmark victories. In Taiwan, insisting — with evidence — that a project failed its own review, and that the public has stopped such projects before, is your strongest argument.

STEP 5: MEDIA STRATEGY

Media turns a local objection into a national cause and a cost the powerful must weigh — and Taiwan has a vigorous free press and a public that responds powerfully to these fights. Use media deliberately, in service of your goal, alongside the legal and organizing work beneath it.

What Coverage Achieves

Coverage raises the political and reputational cost of a project; it pressures officials and committee members who dislike scrutiny; it reaches allies, experts, lawyers, and cultural figures; it warns state enterprises and their partners that a project

is contested; and it creates a public record. Taiwan's biggest fights — Kuokuang, the nuclear question, the algal reef — were sustained national media stories, and that coverage was part of the pressure.

Build the Story Around People, Place, and Proof

The most powerful Taiwanese stories combine a human and natural face with a documented fact: white dolphins and an estuary against a petrochemical giant; a living algal reef against an LNG terminal; farmers' water against a science park; an Indigenous mountain against a cement mine. Lead with the people and the place; supply the proof; keep it accurate. The Kuokuang campaign showed the special power of cultural voices — poets, directors, and writers who made the wetland a national symbol. Prepare a few clear, repeatable messages — what the project is, what it would destroy, what its review got wrong, what you are asking — and keep every spokesperson on them.

Reach Every Layer

Local media reach the affected community and its officials. **National outlets and Taiwan's environmental journalists** carry the fight to the country and the decision-makers. **International media** matter where a global company, a semiconductor supply chain, or a rare species is involved — coverage abroad reaches partners and markets. **Social media and your own channels** mobilize quickly and directly, and Taiwan's online civic culture is strong — strongest when anchored to verified facts and the slower legal and organizing work. **Cultural platforms** — art, film, music, exhibitions — have been a distinctive and potent Taiwanese channel.

Discipline and Safety

Be accurate always; one exaggeration handed to the other side can discredit a campaign, so verify before you publish and correct fast. Stay on message. Anticipate the counter-narrative — that opponents are against development, jobs, energy security, or the semiconductor economy — and pre-empt it by grounding everything in law, the failed review, water, health, and the community's own stake, and by offering the honest point that a reef, a water source, and a healthy community are an economy too. Taiwan's free and safe civic space means you can speak openly; use that freedom fully and responsibly. Used with discipline, media — and especially Taiwan's cultural voices — is the amplifier that makes every other lever hit harder.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advertisement or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and in Taiwan, remember that the most potent amplification has often come free — from the cultural voices, the artists and writers, who made a wetland or a reef a national cause.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Statement for the EIA Review (Public Participation)

To: the Ministry of Environment / the EIA Review Committee **Subject:** Objection and evidence — [project], EIA review [ref]

As a person affected by [project] at [location], I submit the following for the review committee's consideration. The environmental-impact assessment is inadequate because: (1) it [omits / understates] the effect on [the reef / the water source / the habitat / the community]; (2) [cumulative and alternative impacts] were not properly assessed; (3) [specific requirement] was not met. I ask the committee to REJECT the project, or at minimum to refer it to a full second-stage

review, and to enter this statement and its evidence on the record. [Attachments.]

8B. Freedom-of-Information Request

To: [the competent agency] **Subject:** Request for information — [project]

Under the Freedom of Government Information Law, please provide: the environmental-impact statement and any supplements; the review-committee meeting records, attendance, and votes; the conditions and conclusion; the water-allocation and permit decisions; the monitoring data; and the correspondence between [the agency] and [the developer]. Please respond within the statutory period; if access is refused, please state the legal basis, which I may challenge.

8C. Letter Pressing for a Second-Stage Review

To: the Ministry of Environment / the EIA Review Committee **Subject:** Request for second-stage EIA — [project]

The impacts of [project] on [the reef / the water source / the protected habitat] are significant and uncertain, and the first-stage assessment does not resolve them. We request that the project be referred to a full second-stage environmental-impact assessment, with the additional public participation and scrutiny the law provides. We attach the evidence of significant impact that, in our submission, requires it.

8D. Petition to the Administrative Court (via counsel)

To: the [Taipei / Kaohsiung] High Administrative Court, via counsel **Subject:** Petition to revoke [the EIA conclusion / the permit] — [project]

As [affected residents / an environmental group with standing], we petition to revoke [the decision], issued on [date], on the grounds that [the environmental study was inadequate / the review was procedurally flawed, with members absent and the vote irregular / a required second-stage review was avoided / the approval breaches (statute)]. We request suspension of the decision pending judgment. [Filed within the statutory deadline. Grounds and evidence attached.]

8E. Letter to the Ministry, Enterprise, or Local Government

To: [the sponsoring ministry / state enterprise / county or city government] **Subject:** [Reject / suspend / reconsider] [project] [ref]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a failed review, a reef or water impact, an Indigenous-rights obligation]. We ask you to [specific, achievable action]. [If true:] [#] residents, [#] organizations, and [local figures] share this concern; the decision carries legal and reputational risk, including revocation in court. We welcome a meeting and can share our full evidence.

8F. Referral to the Control Yuan

To: the Control Yuan (監察院) **Subject:** Referral — [maladministration / official misconduct] in [project], [location]

We bring to your attention [maladministration in the review of / documented facts suggesting misconduct in connection with] [project]: [sourced facts only — a review cleared irregularly, an approval granted against the evidence, undisclosed interests]. We attach the documentation and request an investigation. We confine this to what we can evidence and make no accusation beyond it.

8G. Coalition Outreach Email (to an environmental legal group)

To: [Wild at Heart Legal Defense Association / the Environmental Jurists Association / Citizen of the Earth] **Subject:** [Project] — would you advise on or bring an EIA challenge?

We are a community group in [place] working on [project], which [one-line stake — e.g. "would clear an EIA affecting a reef and our water source"]. We are getting in touch because your organization has the experience before the review committee and the administrative courts to challenge such approvals. We are not asking you to adopt our whole campaign — just to consider [advising on the committee strategy and the strongest legal grounds / bringing a petition to revoke the EIA conclusion]. We have documented evidence and community support and can share a brief and arrange a call.

8H. Email to a Reporter

To: [journalist] **Subject:** Story tip: [specific finding] — EIA committee meets [date]

I follow your coverage of [beat]. We have something in [place] your readers should know, with a clear news hook: [the environmental study / records] show [quantified finding — e.g. "the assessment never properly evaluated the reef the terminal would bury"], and the review committee [meets / the court hears] on [date]. It's new, specific, and time-sensitive. I can share the full file and connect you with [an expert / a cultural voice]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the committee dates and the window to challenge an EIA conclusion in court. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation; and route them, where you can, through or with an experienced environmental legal group that can strengthen the framing and carry the committee and court work. The reply — or the silence — becomes part of your record, and in Taiwan that record feeds the two arenas that matter most: the review committee and the administrative courts.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Find the EIA committee dates — today.** The review committee is where most projects are decided, and the meeting can come fast. Find out where the project stands in the EIA process and when the committee will consider it. This is the single most time-critical move in Taiwan.
- 2. Submit a statement to the review committee.** One clear submission (8A) naming one or two concrete grounds — a failed impact assessment, a reef or water impact — puts your objection on the record and asks for rejection or a second-stage review.
- 3. Request the file.** One freedom-of-information request (8B) forces out the environmental study, the committee records, and the correspondence — often revealing the defect that becomes your case.
- 4. Hand the fight to an environmental legal group.** Wild at Heart Legal Defense Association, the Environmental Jurists Association, and Citizen of the Earth have the experience before the committee and the courts — point them at your project (8G) and they may carry the challenge.
- 5. Push for a second-stage review.** A single well-evidenced letter (8C) arguing that the impacts require a full second-stage assessment can slow a project and open it to defeat.
- 6. Tell one reporter.** Taiwan's press covers these stories closely; a single accurate tip (8H) can raise the cost, reach a lawyer or a cultural ally, and put the committee under public scrutiny.
- 7. Refer any irregularity to the Control Yuan.** If the review was cleared improperly, a referral (8F) puts the officials under an oversight branch a court challenge does not reach.

Do only the first four and you will have tracked the decisive dates, put your objection before the committee, forced out the file, and put the case in expert hands. Then come back and read the rest.

WHEN THE SYSTEM IS TILTED

Taiwan's system is strong and open, but it is tilted in places — toward the state's strategic priorities of energy security and a semiconductor economy hungry for power, water, and land. You must understand the tilt precisely, so you neither waste effort nor miss the levers that reach past it.

Where the Tilt Shows

The state treats certain projects as essential — LNG terminals and power plants for energy security, science parks and their water and power for the semiconductor economy — and will defend and redesign them to clear review. The EIA review committee, though it includes independent members, can be pressured: the algal-reef review was cleared amid

conspicuous academic absences and a skewed vote. State enterprises sponsor their own projects. And a determined developer will redesign a project to slip past objections, as the Datan terminal was moved offshore after its referendum fell short. Where the tilt is this deep, participation alone will not stop a strategic project — but powerful levers still reach past it.

What Still Works — And It Is Strong

The decisive point about Taiwan is that even where the system tilts, a powerful set of independent levers reaches past it.

The courts are independent. The administrative courts have revoked EIA conclusions regardless of the political will behind them, and standing has broadened. A defective study or a flawed review is a real ground, whatever the state's priority.

The committee still includes independent voices. Even under pressure, the review committee's independent members and the public record they create matter — and irregularities in the process become grounds in court.

The public levers reach the people directly. The referendum, the free press, the cultural voices, and mass mobilization reach past the officials to the public — and Taiwan's public has repeatedly forced retreats.

The Control Yuan checks the officials. Maladministration and misconduct can be investigated, censured, and impeached by a branch a captured agency cannot deflect.

Endurance and breadth can outlast the tilt. Kuokuang was won by a coalition wide and creative enough to move the president. Where a project is strategic, the realistic aim may be delay, redesign, a second-stage review, and a durable movement — which can, over time, change the outcome.

The Honest Frame

So the honest frame for Taiwan is strong but not romantic. Where a project depends on an EIA you can contest and a public you can mobilize, the committee, the courts, and the movement give a community genuine power, and Kuokuang and Lungmen prove they can win outright. Where the state treats a project as strategic and redesigns it to clear review, the fight is harder, the committee can be pressured, and even a fierce campaign with a referendum can lose — the algal-reef warning. But even then the independent courts, the Control Yuan, the public levers, and a broad, creative movement carry real weight, and endurance can change what a single push cannot. Diagnose the tilt honestly, reach for the independent courts and the public the tilt cannot capture, track the committee dates, and build to last.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But genuine corruption and capture exist in Taiwan — in permitting, in land dealings, in the awarding of contracts, and in the pressuring of review bodies — and recognizing it tells you which lever works and which is closed. Handle it carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Signs of Capture

Watch for the patterns: a review cleared irregularly — members absent, a vote skewed, a decision made against the evidence, as the algal-reef case suggested; a rezoning changed quietly to enable a project; undisclosed interests linking officials, a state enterprise, and beneficiaries; a project treated as untouchable regardless of its defects; procedural rules bent to speed a favored developer. At its harder edge, capture can mean an agency so aligned with a state enterprise or a strategic priority that the ordinary checks stop functioning on that project.

Why This Changes Your Strategy

Where corruption or capture protects the harm, persuading the captured body is futile. The strategy shifts to the independent levers that reach past the capture:

- **The administrative courts.** Independent of the agency and the state enterprise, they can revoke an unlawful approval whatever the political will behind it — and a captured, irregular review is itself a ground.
- **The Control Yuan.** It can investigate maladministration and misconduct, and censure or impeach the officials

responsible — reaching where a court challenge does not.

- **The Legislative Yuan.** Sympathetic legislators can hold hearings, question ministers, and expose a captured decision.
- **Investigative journalism and the public.** A documented story, and the attention of Taiwan's vigorous press and civil society, can move what a captured body will not.

Document It Carefully and Safely

If you are documenting corruption or capture, do so with rigor and restraint. Distinguish always between what you can prove and what you suspect; allege only what your evidence supports; and refer serious allegations through lawyers and the proper bodies (the Control Yuan, the prosecutors, the courts), not through reckless public accusation, which invites a defamation suit and hands your opponents the story. Taiwan's free press and independent courts are genuine assets here — a well-documented case of capture, carried to the courts, the Control Yuan, and the public, is how the capture is reached. Doing the work carefully and transparently is how a community both wins and protects itself.

INTEGRATION & TIMELINE

The steps in this guide are not a menu to pick from; they are strands to weave together over time, with the EIA committee and the courts at the center and the public providing the weight. This section shows how they combine, and roughly when each comes into play.

How the Strands Reinforce Each Other

The power of a Taiwanese campaign comes from combining its strands. **Documentation** feeds everything — the committee submission, the court petition, the referendum, the media. **The EIA committee** is the central arena where a project can be rejected or sent to a fuller review. **The courts** provide the independent check that can revoke an unlawful approval. **Broad, creative organization** — the Kuokuang signature — supplies the political weight and the national attention. **Referendums, the Control Yuan, and Indigenous rights** open further fronts. **Media and cultural voices** raise the cost and carry the fight to the public. Each strand strengthens the others: a documented failure to assess a reef becomes a committee submission, a court petition, a news story, a cultural cause, and a mobilizing fact at once. No single strand reliably wins the hardest fights; woven together, and carried by a broad public, they have won Taiwan's greatest ones.

A Rough Timeline

Early (first weeks). Identify the project and where it stands in the EIA process, and find the committee dates — this is urgent. Begin documentation; request the file; submit to the review and push for a second-stage assessment. Engage an environmental legal group early. Establish the strongest ground — the failed impact assessment, the reef or water source, the Indigenous status.

Building (weeks to months). Contest the project fully before the review committee, and prepare the court challenge to any unlawful approval. Deepen the documentation and the expert analysis. Build the coalition wide and creative — residents, NGOs, scientists, students, artists — and the media presence, and begin sustained public mobilization. Weigh the referendum route.

Sustained (months to years). Keep the committee work, the litigation, the organizing, the media, and any referendum alive together, adapting as the situation shifts. Sustain the people through a long fight — some Taiwanese victories took years — by sharing the load, renewing the movement, and keeping the legal case moving.

Throughout. Reassess honestly. If a lever works, press it; if a strategic project grinds on despite real effort, shift the aim to delay, redesign, a second-stage review, and a durable movement, and keep the litigation and the record live. And keep the committee and the courts central at every step: in Taiwan, the environmental review and the independent judiciary, backed by a broad and creative public, are the firmest ground a community stands on.

Two Fights, Two Lessons

Taiwan offers a community two kinds of case, and together they are the most honest teaching in this guide. **Kuokuang and Lungmen are the lesson of what a movement can win.** A petrochemical giant planned for a dolphin habitat was defeated by a broad, creative coalition and a citizen land-buying trust; a nearly finished nuclear plant was halted after mass protests and a hunger strike. Both were projects the government wanted, and both were stopped. **The Datan algal reef is the lesson of the limits.** A living reef drew a fierce campaign, a lawsuit over a review cleared amid academic

absences, and a national referendum to veto the LNG terminal — and the referendum fell short of its threshold, the project was redesigned and moved offshore, and it was built. The lesson: the same toolkit that won Kuokuang was not enough at Datan, because the state treated the terminal as essential to energy security, redesigned it to answer the objections, and the referendum bar was hard to clear. Hold both. Fight at the committee and the courts, organize broadly and creatively — and be clear-eyed that against a strategic project, even a strong movement can lose, so aim also for delay, redesign, and a durable movement that outlasts the fight.

FINAL ASSESSMENT

The Honest Bottom Line

Taiwan is, for a community facing a destructive project, one of the most hopeful countries in this guide — and an honest one about its limits. Both are true, and which you meet depends on the fight.

Where a project depends on an environmental-impact assessment you can contest and a public you can mobilize, Taiwan gives a community genuinely powerful levers. **The EIA review committee — with independent members — can reject a project or send it to a fuller review.** The **administrative courts are independent and have revoked EIA approvals**, as in the Central Taiwan Science Park case. The public has **referendums, a free press, and one of Asia's most sophisticated and creative environmental movements**, and the **Control Yuan** checks the officials. Taiwan has proved these levers can win outright: the **Kuokuang** petrochemical complex was defeated in 2011 by a broad, imaginative coalition and a citizen land-buying campaign, and the **Lungmen** nuclear plant was halted in 2014 after mass protests and a hunger strike. These were not moral victories; they were projects stopped.

But Taiwan also shows the limits. The **Datan algal-reef LNG terminal** drew a fierce campaign, a lawsuit, and a national referendum — and the referendum fell short, the terminal was redesigned and moved offshore, and it was built. Where the state treats a project as strategic — for energy security or the semiconductor economy — it will defend and redesign it, and even a sophisticated movement can lose. That is the honest warning a Taiwanese community must carry: the tools are strong and have won landmark victories, but they are not guaranteed.

What Distinguishes the Campaigns That Win

The Taiwanese campaigns that succeed share a pattern. They **fight at the review committee** and, when it approves unlawfully, in the **courts**. They organize **broadly and creatively** — drawing in scientists, students, and above all the cultural voices that made Kuokuang a national cause. They document rigorously, because every committee, court, and referee acts on evidence. They use the **referendum, Control Yuan, and Indigenous levers** where they fit. And they **endure**, because some victories took years. The campaigns that come to grief rely on participation alone against a strategic project, miss the committee or court deadlines, or fail to reach beyond the affected village.

A Closing Word

If you are reading this because a project threatens your reef, your wetland, your water, your mountain, or your town, understand that in Taiwan you are not without recourse — and that you stand in a country whose communities have stopped a petrochemical giant and a nuclear plant. The method is clear: find where the project stands in the EIA process and track the committee dates; build the case that its environmental review is inadequate or unlawful; contest it before the review committee and, if approved, in the administrative courts; document everything; organize broadly and creatively; and use the referendum, Control Yuan, and Indigenous levers where they fit. It does not promise an easy win, and against a strategic, state-backed project it asks you to accept real limits — the algal reef is honest about that. But it is the method by which Taiwanese communities, their lawyers, and their artists stopped the Kuokuang complex and the Lungmen plant — and it is the firmest ground a community can stand on. Judge your campaign by real outcomes — a project rejected or sent to second-stage review, an EIA conclusion revoked, a referendum won, a project delayed or redesigned — track the dates, organize to last, and hold to the knowledge that here a mobilized public and an independent court have stopped what the powerful wanted built.

Real Outcomes: What Winning Looks Like

"Winning" in Taiwan takes several forms, and it is worth naming them so you recognize one when it comes: a **project rejected or sent to a second-stage review** by the EIA committee; an **EIA conclusion revoked** by the administrative court, as in the Central Taiwan Science Park case; a **referendum won**, vetoing or reshaping a project; **consent obligations enforced** on Indigenous land; a **project withdrawn** under public pressure, as Kuokuang was, or **halted**, as

the Lungmen nuclear plant was; or a **project delayed, redesigned, or conditioned** so that its worst harm is avoided. Communities in Taiwan have achieved each of these — almost always through the combination of documentation, the review committee, the courts, broad and creative organizing, and endurance, and rarely through any single step. And be honest that some fights, like the Datan algal reef, are lost even after a fierce campaign and a referendum. Judge your campaign by these outcomes, and remember that the greatest of them, Kuokuang, came from a coalition wide and imaginative enough to move a president.